Syllabus

EXXON MOBIL CORP. *v.* CORPORACIÓN CIMEX, S. A. (CUBA), ET AL.

CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR THE DISTRICT OF COLUMBIA CIRCUIT

No. 24–699. Argued February 23, 2026—Decided June 23, 2026

In 1960, after Fidel Castro seized power in Cuba, the Cuban Government confiscated many foreign-owned assets, including Exxon's oil refinery, terminals, packaging plants, and more than a hundred service stations. Since then, two Cuban government-owned companies—Unión Cuba-Petróleo (CUPET) and Corporación CIMEX, S. A. (Cuba) (CIMEX)—have operated and profited from Exxon's expropriated assets. Exxon had no good way to sue the Cuban government entities and seek compensation for its confiscated property until Congress passed and President Clinton signed the Helms-Burton Act in 1996. As relevant here, the Act created a private right of action for U. S. nationals whose property was confiscated by the Cuban Government against "any person that . . . traffics in" the confiscated property, 22 U. S. C. § 6082(a)(1)(A), with "person" defined to include "any agency or instrumentality of a foreign state," § 6023(11). Exxon sued CUPET, CIMEX, and later CIMEX's Panamanian alter ego under the Helms-Burton Act in the U. S. District Court for the District of Columbia, seeking more than $1 billion in damages. The Cuban government-owned companies moved to dismiss, asserting immunity under the generally applicable Foreign Sovereign Immunities Act (FSIA). Exxon countered that the Helms-Burton Act itself waived the defendants' sovereign immunity. The District Court sided with the Cuban government defendants, and a divided panel of the U. S. Court of Appeals for the D. C. Circuit affirmed. 111 F. 4th 12, 23.

Preliminary Print

Held: The Helms-Burton Act itself abrogates the sovereign immunity of Cuban agencies and instrumentalities; plaintiffs who sue Cuban agencies or instrumentalities under the Act need not also satisfy one of FSIA's enumerated exceptions to foreign sovereign immunity.

A congressional waiver of sovereign immunity must be "clearly discernible from the sum total" of Congress's "work," *Department of Agriculture Rural Development Rural Housing Service* v. *Kirtz*, 601 U. S. 42, 55. Four points, taken together, lead to the conclusion that the Helms-Burton Act clearly abrogated the foreign sovereign immunity of Cuban agencies and instrumentalities. Pp. 115–131.

Syllabus

(a) First, under this Court's precedents, a statute creating a cause of action that explicitly applies against a sovereign waives the immunity of that sovereign "even without a separate waiver provision," *id.*, at 53. The Helms-Burton Act's cause of action expressly applies against Cuban agencies and instrumentalities: Section 6082(a)(1)(A) confers a private right of action for any U. S. national whose "property" was "confiscated by the Cuban Government," running against "any person that . . . traffics in" the confiscated property, and Section 6023(11) defines "person" to include "any agency or instrumentality of a foreign state." This Court's general sovereign immunity precedents—most recently *Kirtz*—hold that when Congress creates a cause of action and expressly applies it against government agencies or instrumentalities, Congress has abrogated sovereign immunity, see *id.*, at 49–50. Pp. 118–120.

(b) Second, Congress does not ordinarily enact self-defeating statutes, see *Quarles* v. *United States*, 587 U. S. 645, 654, or "authorize a suit against a sovereign with one hand, only to bar it with the other," *Financial Oversight and Management Bd. for P. R.* v. *Centro De Periodismo Investigativo, Inc.*, 598 U. S. 339, 348. The Cuban government defendants' interpretation would largely negate the Helms-Burton Act's cause of action because the potentially relevant FSIA exceptions—the expropriation exception, 28 U. S. C. § 1605(a)(3), and the commercial-activity exception, § 1605(a)(2)—would require a plaintiff to demonstrate that the Cuban instrumentalities engaged in commercial activity *in the United States* or committed acts with direct effects *in the United States*. But a plaintiff suing under the Helms-Burton Act could almost never meet those exceptions because the Act simultaneously codified a comprehensive economic embargo against Cuba and barred most commercial interactions between Americans and Cubans. See 22 U. S. C. § 6032(h); see, *e. g.*, 31 CFR §§ 515.201(b), 515.204. Pp. 120–122.

(c) Third, the Helms-Burton Act provides that suits under the Act fall within the general federal-question jurisdiction of 28 U. S. C. § 1331, not under the FSIA's § 1330. Title 22 U. S. C. § 6082(c)(1) states that Title 28's provisions apply to suits under the Act "to the same extent as . . . *any other action* brought under section 1331 of title 28." (Emphasis added.) By making suits under the Helms-Burton Act subject to § 1331 rather than § 1330, Congress made clear that actions under the Act are not actions under the FSIA. Pp. 123–124.

(d) Fourth, the Helms-Burton Act grants the President plenary power to suspend suits under the Act based on current national security and foreign policy assessments, operating similarly to how foreign sovereign immunity operated before the 1976 enactment of the FSIA. Under both the Act and the pre-FSIA immunity regime, immunity decisions

Page Proof Pending Publication

were the province of the Executive Branch. It is not plausible to conclude that Congress chose to reinstate the pre-FSIA immunity regime in the Helms-Burton Act while simultaneously subjecting suits under the Act to the FSIA. Pp. 125–127.

(e) The Cuban government defendants' counterarguments fail. The implied-repeal canon does not apply because the Helms-Burton Act contains many *express* indications that the Act is a standalone statutory exception to foreign sovereign immunity. And contrary to the Cuban government defendants' arguments, Congress does not need to use "magic words" to abrogate sovereign immunity, *Kirtz*, 601 U. S., at 48; Congress must simply make a waiver "clearly discernible" from the "sum total" of its work, *id.*, at 55 (quotation marks omitted), which the Helms-Burton Act did through its many provisions indicating that Cuban agencies and instrumentalities could and would be sued. That an earlier draft of the Helms-Burton Act expressly waived sovereign immunity while the final version did not is simply another magic-words requirement. Pp. 128–130.

111 F. 4th 12, reversed and remanded.

KAVANAUGH, J., delivered the opinion of the Court, in which ROBERTS, C. J., and THOMAS, ALITO, GORSUCH, and BARRETT, JJ., joined. KAGAN, J., filed a dissenting opinion, in which SOTOMAYOR and JACKSON, JJ., joined, *post*, p. 131.

Page Proof Pending Publication

Morgan L. Ratner argued the cause for petitioner. With her on the briefs were *Jeffrey B. Wall*, *Steven K. Davidson*, *Shannen W. Coffin*, *Michael J. Baratz*, and *Michael G. Scavelli*.

Deputy Solicitor General Gannon argued the cause for the United States as *amicus curiae* urging reversal. On the brief were *Solicitor General Sauer*, *Assistant Attorney General Shumate*, *Deputy Solicitor General Harris*, *Libby A. Baird*, *Sharon Swingle*, *Lewis S. Yelin*, and *Reed D. Rubinstein*.

Jules L. Lobel argued the cause for respondents. With him on the brief were *Michael R. Krinsky*, *Lindsey Frank*, *Nathan Yaffe*, and *David B. Goldstein*.*

---

*Briefs of *amici curiae* urging reversal were filed for the Atlantic Legal Foundation et al. by *Lawrence S. Ebner*; for the Chamber of Commerce of the United States of America by *Ilana H. Eisenstein*, *James E. Berger*,

JUSTICE KAVANAUGH delivered the opinion of the Court.

In 1960, a year after assuming power in Cuba, Fidel Castro declared that the new Communist government would seize all "Yankee property" in Cuba. Castro made good on that promise. The Cuban Government confiscated a variety of American businesses then operating in Cuba, including Exxon's oil refinery and service stations. Cuba transferred Exxon's property to Cuban government-owned companies.

In 1996, to afford victims of "Castro's wrongful seizures" a "judicial remedy in the courts of the United States," Congress passed and President Clinton signed the Helms-Burton Act, formally known as the Cuban Liberty and Democratic Solidarity Act. § 301, 110 Stat. 815, 22 U. S. C. § 6081. That Act created a private right of action for U. S. nationals whose property was unlawfully confiscated: They may sue Cuban agencies and instrumentalities that possess, use, or otherwise traffic in the confiscated property.

Page Proof Pending Publication

Foreign sovereigns, including their agencies and instrumentalities, are presumptively immune from suit in U. S. courts. The question here is whether the Helms-Burton Act abrogates the foreign sovereign immunity of Cuban agencies and instrumentalities—or whether plaintiffs such as Exxon suing under the Act must also satisfy one of the exceptions to immunity in the generally applicable Foreign Sovereign Immunities Act of 1976, or FSIA. 90 Stat. 2891, 28 U. S. C. §§ 1330, 1602 *et seq.*

We conclude that the Helms-Burton Act itself abrogates the sovereign immunity of Cuban agencies and instrumentalities. Therefore, plaintiffs who sue Cuban agencies or in-

---

and *Audrey Dos Santos*; and for King Ranch, Inc., et al. by *Jared R. Butcher*.

Briefs of *amici curiae* urging affirmance were filed for Foreign International Law Scholars and Jurists and for Foreign Sovereign Immunity Scholars by *Christina G. Hioureas* and *Nicholas Renzler*; and for Foreign Relations and Separation of Powers Scholars by *Jennifer B. Condon*.